

Social Security Act, 2018

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Social Security Act, 2075 (2018)

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Amending Acts

1. Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 (2018)
2075.11.19
2. Social Security (First Amendment) Act, 2079 (2022) 2079.03.31
3. Act to Amend Some Nepal Acts Relating to Good Governance and Public Service Delivery, 2081 (2024)
2081.12.18

Act Number 19 of the Year 2075 (2018)

An Act Made to Provide for Social Security

Preamble: Whereas, it is desirable to make necessary provisions to ensure the right to social security of citizens who are economically poor, persons in a state of disability and helplessness, helpless single women, persons with disabilities, children, persons unable to take care of themselves, and citizens of endangered ethnic communities in accordance with the Constitution of Nepal,

Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Social Security Act, 2075 (2018)."
(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
 - (a) "In a state of disability and helplessness" means a person who is economically poor, physically or mentally unable to work, and has no family member to provide maintenance and care.
 - (b) "Persons with disabilities" means persons under section 8 who, due to long-term physical, mental, intellectual or sensory impairments, functional limitations, or existing barriers, face obstacles to participating in social life on an equal basis with other ordinary persons.
 - (c) Deleted by the first amendment .
 - (d) "Economically poor" means a person who has no basis for livelihood, source of income or property, or whose income is less than that specified by the Government of Nepal by publishing a notice in the Nepal Gazette.
 - (e) "Unable to take care of themselves" means a person certified by a medical practitioner to be in a condition where they cannot take care of themselves due to being afflicted with diseases such as Alzheimer's,

Parkinson's, Spinal Cord Injury, Brain Hemorrhage, Mental Retardation, Paralysis, Sickle Cell Anemia, Mental Illness, Autism.

Added by the first amendment.(e1) "Single woman" means a woman who has divorced and not remarried, a widow, a woman living under judicial separation, a woman who has been out of contact with her husband for a continuous period of twelve years, a woman living a solitary life either married or unmarried due to gender-based violence, or an unmarried woman who has completed forty years of age.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(g) "Endangered community" means the communities as per the Schedule.

(h) "Person entitled to social security" means a Nepali citizen who is entitled to receive social security allowance under this Act.

(i) "Social security" means cash, allowance or assistance provided to a citizen entitled to receive social security allowance under this Act.

(j) "Local level" means a Rural Municipality or Municipality. Chapter-2
Social Security

3. Persons Entitled to Social Security Allowance: (1) The following Nepali citizens shall have the right to receive social security allowance:-

- (a) Senior citizens,
- (b) Economically poor persons,
- (c) Persons in a state of disability and helplessness,
- (d) Helpless single women,
- (e) Persons with disabilities,
- (f) Children,
- (g) Persons unable to take care of themselves,
- (h) Endangered communities.

(2) Allowances distributed under sub-section (1) shall be distributed in the name of social security allowance. Added by the Act to Amend Some Nepal Acts Relating to Good Governance and Public Service Delivery, 2081 (2024).(3) For the purpose of distributing social security allowance under this section, the Government of Nepal may, by publishing a notice in the Nepal Gazette, make the National Identity Number mandatory effective from the date specified in that notice for the area specified therein. 4. Senior Citizen Allowance: (1) Dalit and single women senior citizens, after completing sixty years of age, and other senior citizens, after completing amended by the first amendment.sixty-eight years of age, shall, as social security allowance, receive a senior citizen allowance as determined by the Government of Nepal.

(2) Notwithstanding anything contained in sub-section (1), the Government of Nepal may, amended by the first amendment.specify a backward area as well as a specific area and provide such allowance also to senior citizens residing in such area who have not attained the age referred to in sub-section (1). 5. Destitute Citizen Allowance: An economically poor citizen shall receive, as social security allowance, a destitute citizen

allowance of the amount determined by the Government of Nepal as prescribed. 6. Disability and Helplessness Allowance: A citizen in a state of disability and helplessness shall receive, as social security allowance, a disability and helplessness allowance of the amount determined by the Government of Nepal as prescribed. 7.

Amended by the first amendment. Helpless Single Woman Allowance: The following single women shall receive, as social security allowance, a helpless single woman allowance as determined by the Government of Nepal as prescribed:- (a) Widow, (b) Other single women whose income is less than that specified by the Government of Nepal by publishing a notice in the Nepal Gazette and who have no family member for maintenance and care, or who have such a member but are in an economically poor condition or whose maintenance is not provided by such member. 8. Amended by the first amendment. Disability Allowance: Citizens who have obtained an identity card for complete disability or severe disability in accordance with the prevailing federal law relating to the rights of persons with disabilities shall, as social security allowance, receive a disability allowance as determined by the Government of Nepal as prescribed. 9. Child Nutrition Allowance: (1) Children who are extremely poor, belong to endangered communities, and children specified by the Government of Nepal who have not completed five years of age shall, as social security allowance, receive a child nutrition allowance as determined by the Government of Nepal. (2) The procedure for providing child nutrition allowance to children under sub-section (1) shall be as prescribed. 10. Endangered Community Allowance: (1) Citizens of endangered communities shall receive social security allowance as determined by the Government of Nepal. (2) The procedure for providing allowance to endangered communities under sub-section (1) shall be as prescribed. 11. Care Allowance for Persons Unable to Take Care of Themselves: (1) A citizen unable to take care of themselves shall receive social security allowance as determined by the Government of Nepal. (2) The procedure for providing allowance for citizens unable to take care of themselves under sub-section (1) shall be as prescribed. 12. Application to be Submitted: (1) A person entitled to social security allowance under section 3 shall submit an application to the concerned local level in order to receive social security allowance under this Act.

Provided that, in the case of a person who cannot submit an application themselves, the guardian, responsible person (mathawar), or caregiver of such person may submit the application. (2) When submitting an application under sub-section (1) for the social security allowance for children under section 9, proof of the record of birth registration must also be submitted. (3) Upon receipt of an application under sub-section (1) or (2), the local level shall take necessary action and make a decision within seven days. (4) When taking action under sub-section (3), if it appears that the applicant is not entitled to receive the social security allowance, the local level shall give written notice of the same, stating the reasons, to the applicant. (5) The format of the application under sub-section (1) and the documents to be attached shall be as prescribed. (6) A person who does not wish to receive the social security allowance under this section shall make a voluntary declaration of not taking the social security allowance and inform the concerned local level. (7) If any citizen does not wish to receive the social security allowance under sub-section (6), the concerned local level shall keep a record of the same and honor such person. 12A. Added by the first amendment. Honor for Those Not Taking Social Security: Notwithstanding anything contained in sub-section (6) or (7) of section 12, if a person entitled to social security under this Act makes a voluntary declaration of not taking such social security, such person shall be honored with a letter of appreciation as prescribed. 13. Not Entitled to Double Social Security: (1) If any citizen is entitled to receive more than one type of social security allowance under section 3 of this Act, such person shall receive only one social security allowance of their choice. (2) If any citizen is entitled to receive the same type of facility under this Act and prevailing law, such person may receive only one facility as per their choice. (3) Notwithstanding anything contained in sub-sections (1) and (2), a child who has

received an allowance under other prevailing law may also receive the allowance under section 9. 14.

Entitled to Facility under Prevailing Law: (1) Notwithstanding anything contained in section 13, this Act shall not prevent a person receiving social security allowance under this Act from receiving other types of social security under prevailing law. (2) Except for the condition where families of martyrs who sacrificed their lives during the people's movements, armed conflict and revolution for progressive democratic change in Nepal, families of disappeared persons, democracy fighters, persons with disabilities, injured and victims have received social security under prevailing law, they shall receive security or honor as prescribed. (3) The Government of Nepal may adopt an integrated system regarding the provision of social security allowance under this Act and other social security facilities provided under prevailing law. 15. Amended by the first amendment. Persons Not Entitled to Social Security Allowance: The following persons shall not receive social security allowance under this Act:- (a) A person who is holding a position in any government or public office by appointment, election or nomination, (b) A person who is regularly receiving remuneration, pension, retirement facility or other facility from the Government of Nepal, Provincial Government, Local Level, or an organized institution fully or partially owned by the Government of Nepal, Provincial Government or Local Level. 16. Identity Card: (1) A person entitled to social security allowance under this Act shall be issued an identity card by the concerned local level in the prescribed format. (2) The identity card issued under sub-section (1) must also mention the identity of the guardian, responsible person (mathawar), or caregiver of the person receiving the social security allowance. (3) The local level shall review the disability-related identity card every year and update the record. (4) Other provisions relating to the identity card provided under sub-section (1) shall be as prescribed. (5) A citizen who has not obtained the identity card under sub-section (1) shall not receive the social security allowance. 17. Distribution of Social Security Allowance: (1) The local level shall distribute the social security allowance based on the identity card under section 16. (2) The procedure and medium for distributing social security by the local level under sub-section (1) shall be as prescribed. (3) In an area specified by the Government of Nepal by publishing a notice in the Nepal Gazette, payment of social security allowance shall be made only through the banking system from the specified date. 18.

Record to be Maintained: (1) The local level shall maintain records of social security distributed under this Act in the prescribed format. (2) The local level shall send the details of the social security distribution to the concerned body of the Government of Nepal within the prescribed format and timeframe. (3) Other provisions relating to record management under sub-section (1) shall be as prescribed. 19. Removal of Name of Person Receiving Social Security Allowance: (1) The local level shall remove the name of a person receiving social security allowance from its records in the following circumstances:- (a) if the person receiving social security allowance migrates elsewhere, (b) if a helpless single woman marries, (c) if the person is no longer eligible to receive social security allowance under this Act, (d) upon death, (e) in other circumstances as prescribed. (2) If a person receiving social security allowance is to migrate elsewhere under clause (a) of sub-section (1), the concerned local level must mention the same details in the identity card. 20. Government of Nepal to Make Budgetary Provision: (1) The liability for social security allowance under this Act shall be of the Government of Nepal. (2) Additional social security allowance under respective headings shall not be distributed by the Provincial and Local Governments in a manner that duplicates the social security allowance distributed by the Government of Nepal. Chapter-3 Offenses and Penalties 21. Offense and Penalty: (1) If any person commits the following act, they shall be deemed to have committed an offense under this Act:- (a) obtaining social security allowance by providing false details, (b) obtaining social security allowance contrary to this Act or the rules made under this Act, (c) if the guardian, responsible person (mathawar), or caregiver of a person, or any other person, misuses or uses against the interest of the person receiving the social security allowance,

(d) if the officer distributing social security allowance misuses the social security allowance, (e) submitting false details or making false recommendations. Amended by the first amendment.(2) If any person commits an offense under clause (a), (b) or (c) of sub-section (1), or obtains money by submitting false details or knowingly submitting false recommendations under clause (e), the amount taken by such person shall be recovered and such person shall be fined an amount equal to the amount misappropriated. (3) If any person commits an offense under clause (d) of sub-section (1), or makes a false recommendation under clause (e), the concerned official shall be punished in accordance with prevailing law. 22. May Lodge Complaint: Any person may lodge a complaint regarding an offense under this Act with the Judicial Committee of the concerned local level. 23.

Court to Try Cases: (1) The Judicial Committee of the concerned local level shall conduct proceedings and adjudicate cases under this Act, except for the offense under clause (d) of sub-section (1) of section 21. (2) The Judicial Committee must conduct proceedings and adjudicate a case filed under sub-section (1) within one hundred and twenty days from the date of registration. (3) Notwithstanding anything contained in sub-sections (1) and (2), if a complaint related to an offense under clause (d) of sub-section (1) of section 21 is lodged, such complaint shall be forwarded to the concerned body for necessary action. 24. Appeal: A person aggrieved by the decision of the Judicial Committee under section 23 may appeal to the District Court within thirty-five days from the date of knowledge of such decision. 25. Punishment under Prevailing Law: If any act deemed to be an offense under this Act also constitutes an offense under other prevailing law, nothing contained in this Act shall be deemed to prevent the institution of a case and action against such offense under prevailing law. Chapter-4 Miscellaneous 26. Monitoring Related Provisions: Provisions relating to record management of persons receiving social security and monitoring of allowance distribution shall be as prescribed. 27. May Establish Care Centers: The Government of Nepal, Provincial Government or Local Level may establish and operate care centers as prescribed for the care of orphaned children, disabled and helpless persons, persons with disabilities, and senior citizens. 28. Report to be Submitted: Each local level shall submit the details of social security allowance distributed to the Government of Nepal and the concerned Provincial Government on a quarterly basis. 29. Power to Make Rules: The Government of Nepal may make necessary rules for implementing this Act. Provided that until the regulations under this Act are made, the Government of Nepal shall not be prevented from providing social security allowances that were previously being provided. 30. To Make Directives and Procedures: Subject to this Act and the rules made under this Act, the amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 (2018).Ministry of Home Affairs of the Government of Nepal may make necessary directives and procedures in relation to the distribution of social security allowance. 31. May Amend Schedule: The Government of Nepal may, by publishing a notice in the Nepal Gazette, make necessary changes and additions to the Schedule. 32.